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Case Number: 26STCV00696 Hearing Date: August 6, 2026 Dept: 508

Superior

Court of California

County of Los Angeles

Department

508

ANA LILIA ISLAS,

Plaintiff,

vs.

CONTRACT SERVICES GROUP, INC., et al.,

Defendants.

Case

No.:

26STCV00696

Hearing Date:

August 6, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT CONTRACT

SERVICES GROUP, INC.'S MOTION TO COMPEL ARBITRATION AND TO STAY ACTION

Background

On

January 8, 2026, Plaintiff Ana Lilia Islas ("Plaintiff") filed this action against Defendants Contract Services Group, Inc. and Claudia Doe, alleging seven causes of action for (1) disability/medical condition discrimination [Cal. Gov. Code § 12940, et seq.]; (2) failure to provide reasonable accommodation [Cal. Gov. Code § 12940, et seq.]; (3) failure to engage in good faith interactive process [Cal. Gov. Code § 12940, et seq.]; (4) harassment/hostile work environment [Cal. Gov. Code § 12940, et seq.]; (5) failure to prevent harassment/hostile work environment [Cal. Gov. Code § 12940, et seq.]; (6) retaliation [Cal. Gov. Code § 12940, et seq.]; and (7) wrongful termination [in violation of public policy].

Defendant

Contract Services Group, Inc. ("Defendant") moves to compel arbitration. Plaintiff opposes. Defendant replied.

Legal

Standard

Code of Civil Procedure, section 1281 provides that "[a] written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract."

California law, similar to

federal law, favors enforcement of valid arbitration agreements. ((Ramirez v. Charter Communications, Inc. (2024) 16 Cal.5th 478, 492.) The

Federal Arbitration Act (FAA) and the California Arbitration Act (CAA) are liberal policies that create a presumption in favor of arbitration agreements,

requiring that any doubts or ambiguities of an arbitration clause's scope to be resolved in favor of arbitration. ((Cronus Investments, Inc. v. Concierge Services (2005) 35 Cal.4th 376, 384-386); ((Baker v. Osborne Development Corp. (2008) 159 Cal.App.4th 884, 892 (Baker).) This strong public policy compels courts to liberally construe the terms of arbitration agreements. (Vianna v. Doctors' Management Co.¿(1994) 27 Cal.App.4th 1186, 1189).

The general rule is that the FAA governs all agreements to arbitrate in contracts "involving interstate commerce." ((Higgins v. Superior Court (2006) 140 Cal.App.4th 1238, 1247.) The term "involving" commerce "is broad and is indeed the functional equivalent of 'affecting'" commerce. ((Allied-Bruce Terminix Cos. v. Dobson (1995) 513 U.S. 265, 273-274.) However, even when the FAA governs the interpretation of arbitration clauses, California law will govern whether an arbitration agreement was formed in the first instance. (Baker, supra, at 893.)

To compel arbitration of a plaintiff's claims, a defendant must first allege the existence of an agreement to arbitrate. ((Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 219.) The burden then shifts to the plaintiff to prove the falsity of the agreement. ((Ibid.) After the Court determines that an agreement to arbitrate exists, it then considers objections to its enforceability. ((Ibid.) If a valid agreement is found, "the court shall order the petitioner and the respondent to arbitrate." (Code Civ. (Proc. (?YEAR?) § 1281.2).)

Discussion

A.

Existence of an Arbitration Agreement

Defendant contends that an enforceable arbitration agreement exists with Plaintiff. Plaintiff disagrees, asserting that she never saw or signed the agreement.

Parties may be compelled to arbitrate a dispute if the court finds that (1) there is "an enforceable arbitration agreement between the parties," and (2) the agreement covers the claims in the parties'

dispute. (Omar v. Ralphs Grocery Co. (2004) 118 Cal.App.4th 955, 961.) A party seeking to compel arbitration may meet their initial burden by simply alleging “the existence of an agreement and support[ing] the allegation” by attaching a copy of the agreement or its relevant provisions. (Condee v. Longwood Mgmt. Corp. (2001) 88 Cal.App.4th 215, 219.)

“In determining whether an arbitration agreement applies to a specific dispute, the court may examine only the agreement itself and the complaint filed by the party refusing arbitration [citation]. The court should attempt to give effect to the parties’ intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made.” (Weeks v. Crow (1980) 113 Cal.App.3d 350, 353.) “To determine whether a contractual arbitration clause requires arbitration of a particular controversy, the controversy is first identified and the issue is whether that controversy is within the scope of the contractual arbitration clause.” (Titolo v. Cano (2007) 157 Cal.App.4th 310, 316.) The court should order parties to arbitrate, even if there are doubts, unless the clause clearly cannot be interpreted to cover the dispute. (California Correctional Peace Officers Assn. v. State (2006) 142 Cal.App.4th 198, 205.)

Here, Defendant asserts that they have standing to compel arbitration because a valid, enforceable arbitration agreement exists between the parties. Defendant includes a declaration of Jeniffer Ramos (“Ramos”), who attests that she is the “Vice President [of] Human Resources for Contract Services Group (‘CSG’) at. [sic] I have held this position since approximately June 2023. Prior to that time I worked in the human resources department. I am responsible for, among other things, applying CSG’s employment-related practices and policies, including maintaining CSG employees’ personnel files and managing CSG Human Resources Information System (‘HRIS’). I played a direct role in implementing, testing, and reviewing CSG’s employee portal including what resources and documents are available to employees through the system, how documents are provided, reviewed, and executed through the system, and the system’s accessibility to employees. I also am responsible for maintaining and overseeing employee’s personnel files.” (Ramos Decl., ¶ 1.) She attests that “[f]or purposes of making this Declaration, I have reviewed documents contained in Ana Islas’s (‘Islas’) personnel file, which were made in the regular course of CSG’s business, at or near the time of the act or event recorded in the document, by persons with

knowledge of those events, and are maintained in her personnel file throughout the regular course of CSG's business. CSG's records show Plaintiff began her employment on May 11, 2023." (Ramos Decl., ¶ 3.)

Ramos explains the onboarding process, stating that Plaintiff "was presented with various documents related to CSG's employment and policies including, but not limited to, W-4 tax forms, I-9 forms, a company handbook, meal and rest break policy, timekeeping procedures, and an arbitration agreement ('First Arbitration Agreement'). These documents (other than the federal W-4 and I-9 forms) were provided in both English and Spanish. In order to fill out these forms, Islas was required to set up." (Ramos Decl., ¶ 4.) "At onboarding, CSG sends a link to each employee at their personal email that they provide. The link takes the employee to the company's Applicant Tracking System ('ATS') and requires her to create an account. This includes creating a username, password and 4-digit PIN of her choosing and known only to her." (Ramos Decl., ¶ 5.)

Ramos attests that "[i]n order to complete the onboarding documents electronically, she logs in with her custom made credentials and then reviews and fills out each onboarding document in the portal. Once she has finished reviewing and completing each document, she affixed her electronic signature and then was required to re-enter her 4-digit PIN to confirm her identity and agreement. Islas completed this process and electronically signed her onboarding documents on May 12, 2023, including the Arbitration Agreement. Attached as Exhibit A is a true and correct copy of Plaintiff's Arbitration Agreement as maintained in both the ATS and Ms. Islas' personnel file." (Ramos Decl., ¶ 7, Ex. A.) Further, Ramos attests that "[o]nce signed, the documents, including the arbitration agreement, remained fully accessible in Islas' ATS portal to review or print at any time. Once signed, the documents cannot be altered or revised by CSG." (Ramos Decl., ¶ 8.)

In opposition, Plaintiff challenges the validity of the arbitration agreement and the electronic signature. Plaintiff first asserts that Defendant does not explain how Plaintiff executed the arbitration agreement, because "[t]he only evidence proffered by Defendant to establish that the electronic signature on the arbitration agreement belongs to Plaintiff is the declaration of Jennifer Ramos... However, Ramos fails to provide any evidence whatsoever to support these bare assertions. Rather, Ramos simply attaches a copy of an arbitration agreement purportedly containing Plaintiff's signature. (Decl. Ramos, Ex. A.) Critically, Ramos does not even attempt to

explain how this electronic signature came to be placed on the document, or how she verified that the electronic signature was in fact Plaintiff's." (Opp., 2:25-3:6.) Critically, Plaintiff attests that she has "never met or even heard of Jennifer Ramos." (Islas Decl., ¶ 3.)

Plaintiff also asserts that she "did not electronically sign any documents, including the arbitration agreement." (Opp., 3:12.) In support, Plaintiff attests that she "was never asked by Defendant to create an account on Defendant's Applicant Tracking System or any other online platform[,] ... never received an email to create an account on Defendant's Applicant Tracking System or any other online platform[,] ... never had any email address whatsoever prior to my employment with Defendant or at any time during the onboarding process[,] ... never logged into any electronic platform to review or sign documents while I was employed by Defendant[,] ... [and] was never asked by Defendant to electronically sign any documents whatsoever." (Islas Decl., ¶¶ 4-8.)

Further, Plaintiff attests that "[t]he only documents I ever signed with Defendant were physical documents signed in ink." (Islas Decl., ¶ 9.) Plaintiff states that "[a] few days after I began my employment with Defendant, a manager, Fernando (Last Name Unknown), provided me with two physical documents to sign. While I was reviewing these documents, Fernando was typing on a computer. When I finished reviewing the two physical documents, I signed them both in ink. Fernando then handed me a small piece of paper with a four-digit number to use to clock in for my shift. I never created this four-digit number. I only used this number to clock in and out from my shift, and to review my paycheck." (Islas Decl., ¶ 10.) Lastly, Plaintiff declares that she "was never presented with, let alone signed, an arbitration agreement while I was employed by Defendant." (Islas Decl., ¶ 12.)

Plaintiff directs the court to Civil Code section 1633.9, subdivision (a), which states that "[a]n electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable." The effect of the electronic signature "is determined from the context and surrounding circumstances at the time of its creation, execution, or adoption, including the parties' agreement, if any, and otherwise as provided by law." ((Id., § 1633.9, subd. (b).)

When "the respondent challenges the validity of the

signature,[] the petitioner must 'establish by a preponderance of the evidence that the signature was authentic.'" ((Bannister v. Marinidence Opco, LLC (2021) 64 Cal.App.5th 541, 544.) "For example, a party may establish that the electronic signature was 'the act of the person' by presenting evidence that a unique login and password known only to that person was required to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions." ((Id. at p. 545.) "[A] a denial of signing an arbitration agreement is sufficient to shift the burden." ((Garcia v. Stoneledge Furniture LLC (2024) 102 Cal.App.5th 41, 52 ["A party opposing arbitration by challenging the authenticity of his or her signature 'need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent.' [Citation.]"). Accordingly, Plaintiff's declaration denying that she signed the arbitration agreement is sufficient to shift the burden back to Defendant to demonstrate that Plaintiff did indeed sign the agreement.

Defendant's reply includes a supplemental declaration of Ramos, in which she attaches additional documents, one is Plaintiff's application for her initial employment with Defendant and the other is "copies of documents Islas electronically completed as part of her onboarding process consistent with CSG's regular standard procedure." (Ramos Supp. Decl., ¶¶ 2-3, Exs. B-C.) Ramos attests that "CSG does not have a system in place where employment onboarding documents are physically signed by employees." (Ramos Supp. Decl., ¶ 3.)

Defendant also contends that "Islas's application of employment to CSG, dated May 2, 2023 -- admittedly before she was hired -- was submitted electronically and includes an email address -- . (Supplemental Declaration of Jeniffer Ramos ('Supp. Ramos Decl.'), Exh. B.) This email address was confirmed in one of the electronic onboarding documents Islas executed with her employee information. (Supp. Ramos Decl., Exh. C [p.1-2].)." (Reply, 6:2-6.) The Court notes that the application for the position includes an email address (See Ramos Supp. Decl., Ex. B), however, the Court does not see this email address appear in any of the other attached documents. Defendant further asserts that "the onboarding forms contain other obvious and customary documents such as the I-9 form, W-4 form, EEO Self Identification Form, EDD Employee Withholding Allowance

Certificate, and even predesignation of personal physician form. (Supp. Ramos Decl., Exh. C [pp. 3, 8-16].) All of these forms bear Islas' electronic signature in the same manner as the Arbitration Agreement. More importantly, these forms require the input of personal or sensitive information that CSG could not have otherwise known." (Reply, 6:11-16.)

Defendant's reply asserts that it "already has carried its burden to demonstrate that Islas signed the Arbitration Agreement through Jeniffer Ramos' initial declaration. While Islas' declaration attempts to claim she did not participate in the electronic onboarding procedure, the declaration is more telling for the information it omits, than what it includes. Islas' claims she only ever signed two documents – both in ink – with CSG, and no documents electronically. However, Islas does not identify the two documents she allegedly signed in ink. Given the commonplace onboarding documents required of all employees, without even addressing CSG specific documents, this is highly unlikely." (Reply, 7:18-24.)

Plaintiff adequately demonstrates that an enforceable arbitration agreement does not exist. Defendant provides two declarations from Ramos, attesting to documents found in Plaintiff's file and the standard process for hiring. However, Plaintiff attests that she did not electronically sign documents, she has never met Ramos, and she was provided with her four-digit PIN on a piece of paper by her manager. Defendant's reply asserts that "it is unlikely that an established company with hundreds of employees, such as CSG, would have abandoned its well established and secured onboarding procedures..." (Reply, 8:2-3); however, Defendant fails to provide sufficient evidence that Plaintiff engaged in the well-established onboarding process. Ramos' declaration does not prove "by a preponderance of the evidence" that Plaintiff signed the papers with the arbitration agreement. Although Defendant provides a declaration stating that Plaintiff would have created a four-digit PIN known only to her, Defendant's reply does not present evidence refuting that Plaintiff's manager provided her with the PIN on a piece of paper. Defendant does not present affirmative evidence of Plaintiff logging into the online portal. Nor does Defendant provide a declaration stating that the email included in Plaintiff's application is the email she used in the onboarding documents. Defendant does not present evidence that anyone saw Plaintiff sign the arbitration agreement or informed Plaintiff of its contents. Accordingly, the arbitration agreement is not clearly signed by Plaintiff.

Based on the foregoing, the Court finds that

Defendant failed to meet its burden that Plaintiff actually signed the arbitration agreement.

Conclusion

Based on the foregoing,
Defendant's motion to compel arbitration is DENIED.

Defendant is ordered to respond to
the Complaint within 20 days of the date of this Order.

Defendant is ordered to provide notice of this Order.

DATED: August 6, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court